

parties separated. It is unclear as to why Plaintiff/Father has decided to choose a different childcare arrangement for the minor child. Plaintiff/Father is not working so the Court questions why Plaintiff/Father needs childcare for the child. The Court finds that the minor child has a strong bond with Defendant's/Mother's family. This Factor favors Defendant/Mother.

- i. The reasonable preferences of the child, if the court deems the child to be of sufficient age to express preference.**

The Court finds that the minor child is of insufficient age to express a preference.

This factor is not applicable.

- j. The willingness and ability of each of the parties involved to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent.**

This factor is significant to the Court. The Court questioned Plaintiff/Father as to whether he facilitates a close relationship between the minor child and Defendant/Mother. Plaintiff's/Father's response was that he does not discourage it, which means to the Court that he does not encourage it. Plaintiff/Father also complained about the minor child saying "momma." It is significant to the Court that Plaintiff/Father calls multiple police departments in the same day to raise issues against Defendant/Mother. Plaintiff/Father demands information from Defendant/Mother, in the AppClose transcript, that he has no right to question. Plaintiff/Father clearly gets frustrated when he does not get the answer he wants. Plaintiff/Father believes that it is his way or the highway, which is also evidenced by the multiple Motions he has filed throughout the course of this case and for which the Court has instructed him the Motions were frivolous and not to file any additional frivolous Motions.

Defendant/Mother testified that she encourages a close and continuing parent-child relationship between Plaintiff/Father and the minor child. The Court does not appreciate that Defendant/Mother withheld the minor child from Plaintiff/Father for a period of time, but the Court cannot hold it against Defendant/Mother as it appears she has tried to facilitate a relationship but does not understand how to, when Plaintiff/Father expects to always get his way. This Factor favors Defendant/Mother.

k. Domestic violence regardless of whether the violence was directed against or witnessed by the children.

This factor raises concerns regarding Plaintiff's/Father's behavior. The Court is specifically referencing the PPO, the police reports, and the testimony regarding Plaintiff/Father having a camera that he intended to send to Defendant's/Mother's home in a bag to monitor the activities at Defendant's/Mother's home. This Factor favors Defendant/Mother.

l. Any other factor considered as relevant to this custody dispute.

This Factor is a combination of all of the testimony and evidence. The Court is specifically referencing Plaintiff's/Father's inability to see how his behavior impacts the minor child; Plaintiff's/Father's inability to see how his behavior impacts the Defendant/Mother; along Plaintiff's/Father's behavior at work and the complaints filed by five (5) co-workers that led to his termination.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that Defendant/Mother shall have sole physical custody of the minor child.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that there is no foreseeable way that these parties can cooperate together to address legal custody concerns.

IT IS FURTHER ORDERED that Defendant/Mother shall be awarded sole legal custody of the minor child.

IT IS FURTHER ORDERED that the parties shall continue to communicate regarding the minor child through the AppClose parenting application. The communication shall only be regarding the minor child and shall only be regarding emergencies.

IT IS FURTHER ORDERED that Plaintiff/Father shall exercise parenting time on alternating weekends. For the summers, beginning with Plaintiff's first alternating weekend after school discharges for the summer, Plaintiff shall exercise alternating weekends from Friday at 5:30 p.m. until Tuesday at 5:30 p.m. with parenting time exchanges occurring at the City of Muskegon Police Department. Effective September 1st each year, until school discharges for the summer, Plaintiff's alternating weekends shall be Friday at 5:30 p.m. until Sunday at 5:30 p.m. with parenting time exchanges occurring at the City of Muskegon Police Department. Both parties may utilize third-parties to conduct the parenting time exchanges. There shall be no communication at all during the parenting time exchanges.

IT IS FURTHER ORDERED that since the parties have been exercising week on week off parenting time, due to the temporary Order, and since the minor child is currently with Plaintiff/Father for parenting time, and despite this Order being effective July 17, 2024, parenting time shall be as follows:

- Plaintiff shall continue to exercise his current parenting time until Friday, July 19, 2024.
- On Friday, July 19, 2024, at 5:30 p.m., the minor child shall be returned to Defendant.
- Plaintiff shall next exercise parenting time beginning Friday, July 26, 2024, at 5:30 p.m. until Tuesday, July 30, 2024, at 5:30 p.m.
- Plaintiff shall next exercise parenting time from Friday, August 9, 2024, at 5:30 p.m. until Tuesday, August 13, 2024, at 5:30 p.m.
- Plaintiff shall next exercise parenting time from Friday, August 23, 2024, at 5:30 p.m. until Tuesday, August 27, 2024, at 5:30 p.m.
- Plaintiff shall next exercise parenting time from Friday, September 6, 2024, at 5:30 p.m. until Sunday, September 8, 2024, at 5:30 p.m. and continuing on alternating weekends from Friday to Sunday until summer break from school.

IT IS FURTHER ORDERED that the parties shall exercise an alternating Holiday

Parenting Time schedule as follows:

Mother in Odd Numbered Years/Father in Even Numbered Years

- Easter weekend Friday at 6:00 p.m. to Sunday at 6:00 p.m.
- Independence Day July 3 at 6:00 p.m. until July 5 at 9:00 a.m.
- Thanksgiving Day Weekend Wednesday at 6:00 p.m. until Sunday at 6:00 p.m.
- 2nd Split Christmas Break
- Spring Break (Parenting time shall commence at 6:00 p.m. the day school recesses and end at 6:00 p.m. the day before school resumes).

Mother in Even Numbered Years/Father in Odd Numbered Years

- Memorial Day Weekend Friday at 6:00 p.m. until Monday at 6:00 p.m.
- Labor Day Weekend Friday at 6:00 p.m. until Monday at 6:00 p.m.
- 1st Split Christmas Break (1st split begins the day school recesses at 6:00 p.m. until Christmas Eve at 9:00 p.m.)
- Child's Birthdays 9:00 a.m. to 9:00 p.m. non-school day and 4:30 p.m. to 8:30 p.m. on school day.

Every Year

- Mother's Day Weekend to the mother from Friday at 6:00 p.m. until Sunday at 6:00 p.m.
- Father's Day Weekend to the father from Friday at 6:00 p.m. until Sunday at 6:00 p.m.

Christmas Break

- 1st split begins the day school recesses at 6:00 p.m. until Christmas Eve at 9:00 p.m.
- 2nd split begins Christmas Eve at 9:00 p.m. and concludes at 6:00 p.m. the day before school resumes
- The Christmas break splits are intended to grant the parties each one week with the children. If the above schedule is not an even split due to the way in which the holiday and school recess fall, the Christmas Break shall be evenly split providing each parent with one week with the children. The holiday parenting time for Christmas Eve and Christmas Day shall remain unchanged.

IT IS FURTHER ORDERED that Holiday Parenting Time takes precedence over the regular parenting time schedule. Regular parenting time shall occur up until holiday parenting time begins, and then at the conclusion of the holiday parenting time, regular parenting time shall resume.

IT IS FURTHER ORDERED that Defendant's Objection to the Ex Parte Order for Custody, Parenting Time, and Child Support Following Facilitative Information Gathering Conference regarding the child support calculations is granted.

IT IS FURTHER ORDERED that Defendant's Attorney of Record shall recalculate child support utilizing the following modifications: for the child support calculations and corresponding Uniform Child Support Order effective May 3, 2024, the childcare/daycare expenses shall be removed from the calculations or alternatively stated the childcare/daycare expenses shall be entered at zero (\$0.00). The Court has recalculated the child support calculations and found that child support would be set at \$1.00. The Court Orders that a deviation, effective May 3, 2024, shall be Ordered based upon the Michigan Child Support Formula Deviations, specifically 1.04(E)(19), as "the amount calculated does not exceed \$20, and the administrative cost to enforce and process payments outweighs the benefit of the minimal amounts."